

August 31, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13322
(SECOND REVISION)

EXPIRATION DATE: July 31, 2010

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: UXB International Inc.
Blacksburg, VA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce for disposal purposes of certain Class 1 waste hazardous materials in non-bulk packagings, by private vehicle in a specially designed bomb-disposal trailer as the outer packaging. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

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4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.56(b) in that the explosives do not have to be approved by DOT prior to shipment; and § 173.62(c) in that the bomb-disposal trailer shall be used in place of any UN Specification outer packaging required. 49 CFR §§ 172.301(a) and 172.301(c), in that the inner packagings are not required to be marked with the proper shipping description, identification number, and special permit number and 49 CFR § 172.400 in that the inner packagings are not required to be labeled.
5. BASIS: This special permit is based on the application of UXB International dated August 15, 2006, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Waste Articles, explosive, n.o.s.	1.4E	UN0471	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification packaging system described as follows:

(1) Inner Packaging:

(i) Solid Waste Explosives - Solid waste explosive substances shall be placed in sift-proof plastic or fiberboard containers if dry and waterproof rubber or plastic containers if wetted. Waste explosive articles shall be packaged in fiberboard, metal or plastic boxes with sufficient dunnage or cushioning to prevent movement within the box during transport.

(ii) Liquid Waste Explosives - Liquid waste explosive substances must first be diluted to a concentration of not less than 50 percent by weight with a compatible non-flammable liquid (e.g., water or water-alcohol mixtures, glyceryl triacetate or vegetable oil.) The diluted waste

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liquid explosive solutions or mixtures must be packaged in compatible rubber or plastic inner receptacles with tightly sealed plastic or rubber closures which must be taped with cloth or plastic tape to prevent inadvertent opening during transport and overpacked in a heavy-wall plastic bag.

(2) Intermediate Packaging - Liquid Waste Explosives
Liquid waste explosives substances in inner packagings described above must then be placed in an intermediate packaging consisting of a tightly sealed metal, rubber or plastic receptacle which is filled with sufficient vermiculite to absorb all the liquid in the inner packaging.

(3) Outer Packaging - Liquid and Solid Waste Explosives
A spherical steel bomb-proof vessel mounted in a mobile trailer made by Dynasafe or similar manufacture as shown in drawings submitted by the applicant on file with the Office of Hazardous Materials exemptions and Approvals and proven to withstand the explosive force of not less than 5 kilograms (11.2 pounds) of dry PETN. The total net explosive mass of all explosive substances and/or explosive compositions within articles in the mobile bomb-proof vessel shall not exceed 4.5 kilograms (10 pounds). All inner packagings shall be sufficiently cushioned, blocked or braced within the outer packaging in order to prevent movement during transport. The total amount of explosives, inert materials, packagings and dunnage may not exceed 60 percent of the volumetric capacity of the vessel chamber.

b. OPERATIONAL CONTROLS:

(1) All shipments shall be made with a driver employed by UXB International. A second driver employed by UXB International who is knowledgeable with explosives must accompany each shipment.

(2) The transportation of the material authorized by this special permit is limited to one-way shipments from the loading site the trailer vehicle to an authorized waste disposal facility.

(3) No intermediate stops or transfer of materials is authorized.

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(4) The trailer vehicle is not authorized to be reoffered when containing hazardous materials.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered for transportation.

b. The mobile bomb-proof trailer must be plainly and durably marked "DOT-SP 13322" on a contrasting background in letters and numbers at least 2 inches high as specified in § 172.302(b) and (c).

c. Packagings permanently marked 'DOT-E 13322', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 13322'.

d. Shipping papers displaying 'DOT-E 13322' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle only.

10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

b. The trailer must be placarded with EXPLOSIVE 1.4E placards.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

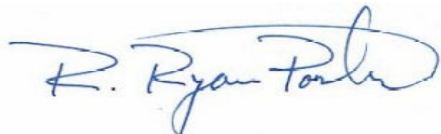
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SCWATSON/sln